

Smt. Savita Kumari vs Ramu Sahu on 14 August, 2025

Author: Sujit Narayan Prasad

Bench: Sujit Narayan Prasad, Rajesh Kumar

2025:JHHC:23881-DB

IN THE HIGH COURT OF JHARKHAND AT RANCHI
F.A. No. 183 of 2023

Smt. Savita Kumari, aged about 47 years, Wife of Ramu Sahu,
Daughter of Late Surya Narayan Sah, Permanent resident of House
No. 11, Near Indu Bhawan, Behind Yamuna Apartment, Gandhi
Nagar, Boring Road, P.S.- Patna, Shri Krishnapuri, District- Patna-
800013 (Bihar), presently residing at House No. 9, Type-III/B,
Survey of India Colony, Near Magistrate Colony, Doranda, P.O. +
P.S.- Doranda, District- Ranchi.

... .. Appellant/Respondent

Versus

Ramu Sahu, Son of Bharat Sahu, Resident of Village-Kumharia, P.O.-
Akashi, P.S. Bhandra, District-Lohardaga, PIN- 835325, at present
Officer Surveyor, posted at office of the Director, 7th Floor (Block-
'A', 'F' & 'G') Karpuri Thakur Sadan, CGO Complex, Ashiana Digha
Road, P.O. +P.S. Ashiana Nagar, Dist.- Patna- 800025 (Bihar)
through its Director.

... .. Respondent/Petitioner

With
F.A. No. 240 of 2023

Ramu Sahu, aged about 44 years, son of Bharat Sahu, resident of
Kumharia, P.O. Akashi, P.S. Bhandra, District Lohardaga, Jharkhand.
... .. Appellant/Petitioner

Versus

Smt. Savita Kumari, wife of Ramu Sahu, daughter of Late Surya
Narayan Sah, permanent resident of House No.11, Near Indu

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Bhawan, Behind Yamuna Apartment, Gandhi Nagar, Boring Road,
P.O. & P.S. Patna Shri Krishnapuri, District Patna, Bihar.
Presently residing at House No.9, Type-III/B, Survey of India
Colony, Near Magistrate Colony, P.O. Doranda, P.S. Doranda, District
Ranchi, Jharkhand.

... .. Respondent/Respondent

CORAM: HON'BLE MR. JUSTICE SUJIT NARAYAN PRASAD
HON'BLE MR. JUSTICE RAJESH KUMAR

For the Appellant : Mr. Jay Prakash Jha, Sr. Advocate
: Mr. Aishwarya Prakash, Advocate
For the Respondent : Mr. Akhouri Awinash Kumar, Advocate
: Ms. Ashwini Priya, Advocate

CAV on 1st July, 2025
Per Sujit Narayan Prasad, J.

Pronounced on _14th August, 2025

1. Both the appeals have been directed to be listed together and as such, are being taken up together.
2. The appeal being F.A. No.183 of 2023 has been preferred by the appellant-wife against the judgment dated 04.07.2023 passed in Original Suit No. 648 of 2017 whereby and whereunder the suit filed by the respondent/husband for dissolution of marriage has been allowed.
3. The appeal being F.A. No.240 of 2023 has been filed by the husband challenging the part of the impugned judgment dated 04.07.2023 passed in Original Suit No. 648 of 2017, whereby and whereunder, the husband has been directed to pay permanent alimony of Rs. 15,00,000/- to the wife.

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4. This Court, taking into consideration the aforesaid, is of the view that appeal being F.A. No.183 of 2023 is to be considered first since the outcome of the said judgment will have bearing upon the appeal being F.A. No.240 of 2023, therefore, the appeal being F.A. No.183 of 2023 is being taken up first.

FA No. 183 of 2023:

5. The instant appeal under Section 19(1) of the Family Courts Act, 1984 is directed against the order/judgment dated 04.07.2023 passed by the learned Principal Judge, Family Court, Ranchi in Original Suit No. 648 of 2017, whereby and whereunder, the learned court has allowed the suit filed by respondent husband for decree of dissolution of marriage.

6. The brief facts of the case as per the original matrimonial suit needs to be referred herein as under:

The marriage between the appellant-wife and respondent-

husband was solemnized on 17.06.2010. After the said marriage, the wife was taken away by the husband to his native village at Kumharia, but she was completely indifferent & reserved herself and did not have any conversation with the family and relatives.

Due to persistent pressure to go to Ranchi, the husband brought the wife to his government quarter at Ranchi but here also she reserved herself and did not talk properly with him.

2025:JHHC:23881-DB Thereafter, the wife insisted that she does not want to live at Ranchi, thus, her brother came from Patna and took her with him on 24.06.2010 and ultimately returned back to Ranchi on 12.08.2010.

The appellant-wife was never interested in leading conjugal life at all having no concern with regard to the husband. During stay, the respondent husband expected that the wife would take charge of the house and would perform her matrimonial obligations, but she did not do so.

Again on 01.10.2010 the wife along with her brother went to Patna without the consent of the husband. The husband tried to contact the wife, but there was no response from her side. Thereafter, in the last week of October, 2010 the husband went to Patna where he came to know that the wife has gone to her uncle's Place at Bhabhuwa, Bihar. The husband tried to take address of Bhabhuwa, Bihar, but the family members of the wife did not provide. After few days the appellant-wife came back, but she refused to come back with the respondent-husband to Ranchi. The wife frequently used to visit her parental home at Patna without the consent of the husband and used to lead her life independently and when he objected and protested for the same, then she became furious and used filthy and abusive language against the husband. The wife also humiliated the husband in presence of his friend. The wife also used to cause trouble by various means like removing the keys of bike, ATM Card, Pass Book and Medicines etc. and when 2025:JHHC:23881-DB the behaviour of the wife became unbearable, the husband left the quarter out of frustration and shifted to his native village in the month of December, 2016.

The wife, to jeopardize the services and to harass the husband, lodged a complaint case with Mahila Ayog in the month of January, 2017 where the husband agreed to open Bank Account in Union Bank of India, Doranda and deposited Rs. 31,000/-and on 15.03.2017, wife gave an undertaking that she will behave properly with the husband, but the behaviour of the wife did not change.

In the month of April, 2017, husband filed a case of restitution of conjugal right bearing MTS Case No. 222/2017, but in spite of notice, wife did not appear in the case.

At the instance of the wife, the State Women Commission asked the husband to appear before it. Husband appeared before the Commission where the wife disclosed that she was previously married which has been dissolved by decree of divorce from the Court of Addl. Principal Judge, Family Court, Patna on 31.05.2007 through Matrimonial Case No.304/2003 and after knowing the said fact the husband withdrew his restitution case on 15.09.2017 for filing a divorce suit.

7. It is evident from the factual aspect that the petitioner-husband had a motion by filing a petition under Section 12(1)(c) and 13(1)(i-a) of the Hindu Marriage Act, 1955 for decree of divorce.

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8. The learned Family Judge has called upon the appellant-wife. The wife has filed written statement and altogether six issues have been framed by the learned Family Court which are as follows:

- (i) Whether the present suit is maintainable in its present form?
- (ii) Whether the marriage between the petitioner and the respondent is voidable because of fraud/concealment of material fact u/s 12(1)(c) of the Hindu Marriage Act, 1955?
- (iii) Whether after solemnization of marriage the respondent has committed cruelty with petitioner?
- (iv) Whether the petitioner is taking advantage of his own wrong?
- (v) Whether the petitioner is entitled to get decree of nullity or alternatively decree of divorce on ground of cruelty?
- (vi) Whether the petitioner is entitled to get other equitable relief or reliefs under the provision of Hindu Marriage Act, 1955?

9. The evidences have been led on behalf of both the parties. Thereafter, the judgment has been passed allowing the suit which is the subject matter of the present appeal.

Submission of the learned counsel for the appellant-wife:

10. The learned counsel appearing for the appellant has submitted that concealment of the fact that the appellant was a divorcee at the time of marriage is not true, as the bio-data was given to the father of the respondent/husband mentioning therein that the appellant/wife was a divorcee.

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11. Further, the learned counsel for the appellant has submitted that as far as the cruelty is concerned, witnesses have stated that behavior of the appellant was very good towards her husband and his family members. She never committed any cruelty against the respondent/husband.

12. It has been submitted that the issue of cruelty has not been taken into consideration in right perspective.

13. It has been contended that the bio-data, photograph and documents of the appellant's was given to the father of respondent husband as such there was no concealment of any fact about the previous marriage and the aforesaid fact has already been substantiated by the testimony of respondent's father who has been examined by the appellant wife as witness.

14. It has further been submitted that the learned family Court has although negated the claim of the concealment of fact as alleged by respondent husband but decree of divorce has been granted on ground of cruelty alone and the learned Family Court while doing so has not taken into consideration the evidences led by the appellant/wife in right prospective.

15. It has been contended on behalf of the appellant that the factual aspect which was available before the learned court supported by the evidences adduced on behalf of the appellant has not properly been considered and as such, the judgment impugned is perverse, hence, not sustainable in the eyes of law.

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16. Learned counsel for the appellant, based upon the aforesaid grounds, has submitted that the judgment impugned suffers from perversity, as such, not sustainable in the eyes of law.

Submission of the learned counsel for the respondent:

17. Per contra, learned counsel for the respondent has submitted that there is no error in the impugned judgement. The learned Family Judge has considered the entire issue and on the basis of evidence as led by the parties has passed the order impugned as such same may not be interfered with.

18. It has been contended that the respondent/husband had sought divorce on the ground that the behaviour of the respondent-wife is cruel, and the learned Family Court, after taking into consideration the oral and documentary evidence, has found that the entire instance of cruelty as alleged against the appellant/wife is true and accordingly allowed the suit in favour of the

respondent/husband as such the said finding cannot be said to suffer with an error.

19. It has also been submitted that the learned Family Court after taking into consideration the material available on record has found that the conduct of the appellant-wife has never been towards salvaging the institution of marriage, therefore on the pretext of the aforesaid categorical finding of the Family Court, the impugned order requires no interference.

20. Further, the appellant herself admitted that she has alone been living in the government accommodation which has been allotted to the 2025:JHHC:23881-DB respondent/husband. Further, the petitioner has been transferred to Patna, but on several requests made by him, the appellant was not vacating the said quarter and as such, he is paying an exorbitant penal rent.

21. Learned counsel, based upon the aforesaid grounds, has submitted that since the factum of cruelty has been found to be established, hence, the impugned judgment cannot be said to suffer from an error. Analysis:

22. This Court has heard the learned counsel for the parties and has gone through the finding recorded by the learned Family Judge in the impugned judgment.

23. The case has been heard at length. The admitted fact herein is that the suit for divorce has been preferred by the respondent/husband on the ground of concealment of previous marriage by the appellant and cruelty, and accordingly application under Section 12(1)(c) and 13(1)(i-a) of the Hindu Marriage Act, 1955 had been filed and consequently, issues have been framed wherein primarily issue nos.(ii) and (iii) pertains to dissolution of marriage on ground of Section 12(1)(c) and 13(1)(i-a) i.e concealment of fact and cruelty.

24. The evidence has been led on behalf of both the parties before the Family Court. For better appreciation, the evidences led on behalf of the parties is being referred as under:

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25. The husband (P.W.1) has stated that after death of mother, his father got his second marriage and never took care of him who lived at her maternal grand father's house. The husband (P.W.-1) has admitted his marriage on 17.06.2010 with the respondent and has deposed that by way of concealing the fact that the wife (appellant herein) was a divorcee, her family members got them married. After marriage, the wife never allowed the husband any physical relation with her on the pretext that she has some physical infirmity. The wife started saying that she is not willing to live at Ranchi thus her brother took her to Patna and on repeated visits of the husband to her place at Patna, she was not ready to come back to Ranchi, however, she returned back lastly but after return to Ranchi she never did her domestic work and never allowed him to cohabit. He has also deposed that he himself cooked food and did any domestic works of the house which caused a pathetic life to him. She also used to run away from the house without informing him. It has been also deposed by him that when he became fed up by abusive language and threatening of implicating him in dowry cases and that the wife used to conceal his bike keys, ATM Card and medicines deliberately, he

informed the matter to the State Mahila Ayog on 16.08.2016 and 03.10.2016 for cruel behaviour of the wife. Even thereafter, the behaviour of the wife became more cruel, thus, he was compelled to leave his Govt. accommodation in the year 2016. This matter was also informed to the State Mahila Ayog on 06.04.2017 and started functioning in his office from his village. The matter was pacified by intervention of the 2025:JHHC:23881-DB State Mahila Ayog then he opened an Account in the name of the wife in Union Bank of India, Doranda, Ranchi and deposited a sum of Rs.31,000/- even then, the matter was not settled. The wife never discharged her obligation as wife so he filed a case of restitution of conjugal right in the Family Court, Ranchi bearing MTS Case No. 222/2017 on 12.04.2017, but the wife did not appear in that case even after receiving the notice.

Due to no change in the cruel behaviour of the wife, the husband again moved to the State Mahila Commission, from there both the parties were directed to be appear before the Commission on 04.05.2017 by issuing notice to the respective parties. The wife admitted before the State Mahila Commission that she is divorcee and vide MTS Case No.304/2003 at Patna, her marriage was dissolved. After knowing this the husband became shocked and saddened, because the appellant-wife and her family members concealed the facts and fraudulently got her married with him. The husband obtained a copy of prescription for treatment of the wife from IGIMS Patna showing sexual infirmity which is cruelty against him. The wife never took part in family function of the husband and she never allowed him for physical contact. The wife is forcibly living in the quarter allotted to the husband and he was never allowed to enter therein by committing domestic violence and for that, he sent letter to Dy.SP, S.P., SSP and the State Mahila Commission. Motorcycle of the petitioner has also been damaged by the wife which was parked in his 2025:JHHC:23881-DB office garage Survey Department of India Ranchi, and for that he sent written information to the Director of the department.

26. During cross-examination, P.W.-1 has admitted in para-56 that the appellant-wife is suffering from Oleomargarine. P.W.1 admitted the treatment of the wife by herself and at the cost of the department from December 2016 to September 2018. P.W.- 1 has also admitted that the complaint has also been filed by both the parties against each other before the Jharkhand State Women Commission. P.W.- 1 has further admitted that his complaint was not accepted by the State Women's Commission. In para-222, P.W.- 1 has deposed that at the time of marriage of the parties, the educational qualification of the wife was shown that she is M.A. pass and pursuing P.Hd.

27. P.W. 2-Mukhlal Saw has stated that he was working in Indian Survey Department at Patna. He knows Dileep Prasad, cousin brother of the wife, whom he suggested for marriage of the respondent husband with his cousin (wife) and took part in negotiation of marriage once or twice but the family member of the wife never disclosed that the wife was already a divorcee. P.W.- 2 has admitted that the husband (respondent herein) himself was cooking food and doing domestic works. He has also deposed that he was present in negotiation of marriage twice but never participated in the marriage from any side. He has denied to know that how many litigations are going on between the parties.

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28. P.W.-3 is Ram Dayal Sahu, who happens to be the maternal cousin brother of the respondent husband, has deposed that he was throughout involved in negotiation of marriage of the parties which took place on 17.06.2010. After marriage, both the parties stayed at the house of respondent/husband for 2-3 days and thereafter started living at the departmental quarter, Ranchi. After some days, the appellant-wife went away to her parental place according to her own wish and returned back to Ranchi in the month of August, 2010. The marriage of the parties never consummated. She used to go to Patna frequently and whenever he visited the quarter of the husband, found that the husband was treated with cruelty by the wife, as she never cooked food and was not doing domestic work. She never participated in family function of the husband. At the time marriage, it was concealed by the family members of the wife that she was divorcee and fraudulently got her marriage with the respondent husband.

29. In cross-examination, he has deposed that at the time of negotiation of marriage, a Bio-data was given by one Luxman Shah, brother of the appellant/wife in which there was no disclosure about the first marriage of the appellant/wife and this fact came to their knowledge after 1-2 years of the marriage. He has further deposed that for about 6 months both the parties lived together. He used to visit the quarter of Ramu Sahu. Both the parties were in physical relation with each other or not, he could not say but it was disclosed by Ramu Sahu that there was no physical relation with his wife. He never saw the wife 2025:JHHC:23881-DB going to Patna and coming back to Ranchi but it was informed to him by the petitioner Ramu Sahu.

30. P.W.-4 is Ramkeshwar Sahu who has admitted marriage of the parties in the year 2010 and thereafter they went to the Village of the husband, but after one or two day they came back to Ranchi on instigation of the husband and started living in Govt. accommodation. Whenever he visited the quarter of the husband, could not found the wife and came to know that she has gone to Patna. The husband- Ramu Sahu used to cook breakfast himself for the visitors or it was brought from the market. The wife was always quarreling with the husband and conjugal life of the parties was not good. Out of the cruel behaviour of the wife, the petitioner-husband was attending his office from his village everyday right from December, 2016 and whenever he used to visit his quarter, wife did not open the door. P.W.- 4 has further deposed that after concealing the first marriage of the appellant wife and her divorce, the family member of the appellant- wife got her marriage with respondent-husband.

31. During cross-examination, P.W.- 4 has stated that he is co-villager of the respondent-husband, Ramu Sahu. He has again admitted that the husband is living in his village. He has deposed that he came to know about the disputes between the parties from the husband-Ramu Sahu and perceived it from their life style. He has admitted that he never participated in matrimonial negotiation of the parties. Apart from this no relevant answer has come from the mouth of this witness.

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32. P.W.-5 is Amit Kumar, who has formally proved the plaint of matrimonial suit no. 304 of 2003 of Patna Family Court and has also proved a joint petition of the parties and certified copy of Complaint Case No. 600/2002 of the Court of Judicial Magistrate, Muzaffarpur.

In cross-examination, he has admitted that he is an Advocate Clerk and has got no personal knowledge about the aforesaid documents.

Witnesses from respondent/wife (appellant herein)

33. R.W.-1 is Binu Sahu, who happens to be the maternal brother-in-law of the husband, has stated that parties to this case got married in the year 2010 at Ranchi in which he took part thereafter both the parties went to the village of the husband for some rituals and thereafter shifted to the official accommodation at Survey Colony, Doranda as husband and wife. He used to visit that quarter where both the parties welcomed him together always. He could see the wife was always busy in domestic work and the situation of the quarter was normal. Ramu remained busy in office work whereas the wife remained busy in the domestic work. Whenever Ramu is at his quarter, he used to watch T.V. whereas the respondent was always busy in household work and there were no differences between the parties though both the parties were disturbed as they have no child.

34. During cross-examination, R.W. 1 has deposed that he was present in the marriage of the parties. After three- four months of the marriage, when he visited that quarter where the wife was alone. Again, he went 2025:JHHC:23881-DB to meet the said Ramu, but he was not present there rather the wife was there. He has admitted that he has come to Court with the appellant wife and father of the respondent husband. R.W. 1 has denied the suggestion given by the respondent husband that the respondent husband has not been living in his quarter since 2016, but has admitted that there is no good relation between the parties. Further, the litigation between the parties before the Mahila Ayog. He has deposed that he has no knowledge about the cruelty by the appellant wife against the husband.

35. R.W.-2 is Bharat Sahu, who happens to be the father of the respondent-husband, has admitted marriage of the parties at Ranchi on 17.06.2010. He has deposed that at the time of negotiation of marriage of the parties, it was disclosed by brother of the respondent/wife(appellant herein) that she is divorcee, but the plaintiff/husband(respondent herein) raised no objection for the marriage. On 20.11.2009, the brother of the wife handed over photograph, Bio-data and divorce case document of the respondent/wife to him and at the same time, the husband took photograph and divorce case paper from him, but the Bio-data remained with him from 20.11.2009. A sum of Rs. 5.51-Lacs was transferred by brother of the wife in the account of the husband and some gifts worth Rs.7-Lac was also given to him.

36. This witness has admitted his second marriage after death of his first wife who happened to be the mother of the his son i.e. 2025:JHHC:23881-DB plaintiff/husband. After marriage, both the parties shifted from his village to Survey Colony, Doranda and started their happy conjugal life. Marriage of the twin brother of the petitioner/husband, namely Laxman Sahu also took place in the year 2011, and thereafter, the plaintiff/husband developed emotional attachment with wife of his twin brother, who lives at Khunti, and thus, he was staying at village leaving the wife at Ranchi. It has further been deposed by him that one day deliberately plaintiff/husband met with motorcycle accident in which the wife sustained spine and head injury. In place of transforming the plaintiff/husband himself, started levelling allegation against the wife and has committed cruelty.

The wife has discharged her marital obligation. The husband himself used to drop the wife to her paternal place, and thereafter, started living at his Village Bhandra. The husband himself neglected the wife and started litigation before the Mahila Ayog in which he also filed his affidavits in favour of the wife. R.W. 2 has denied any relation with the wife as alleged by the husband. The wife fully discharged her marital obligations including domestic work but the husband subjected her with cruelty.

37. During cross-examination, this witness has deposed that he is living with his second wife. This witness has deposed that it is wrong to say that the husband-Ramu and his twin brother were looked after by their maternal grand-father and grandmother rather he incurred expenses towards their education and liabilities. This witness has denied any relation with the wife of his brother and never visited 2025:JHHC:23881-DB Banaras or any other visiting place with her. This witness has also denied that he was talking with the respondent/wife over phone secretly from the field. This witness has admitted that he never received any Notice from the State Mahila Ayog, but he went there at the wish of the respondent-wife (appellant herein).

38. R.W.-3 is Luxman Prasad, who is the brother of the respondent- husband, has also admitted marriage of the appellant-wife with the respondent-husband on 17.06.2010. At the time negotiation of marriage, it was disclosed to the plaintiff -husband that his sister is a divorcee and documents related to that was handed over and at that time the husband did not raise any objection for the marriage. Photographs, Bio-data and divorce case documents were also given to the father of the husband from whom the husband took photo and case related documents. At the time of marriage, a sum of Rs. 5.51- Lacs was transferred by him in the account of the husband and some gifts worth Rs.7-Lac was also given to him. Marriage of twin brother of the petitioner, namely Laxman Sahu also took place in the year 2011, and thereafter, the petitioner developed emotional attachment with wife of his twin brother, who lives at Khunti, and thus, he was staying at village leaving the respondent at Ranchi. One day deliberately he met with a motorcycle accident in which the wife sustained spine and head injury. In place of transforming himself, he started levelling allegation against the wife and committed cruelty. The wife has discharged her marital obligation. The husband himself used to drop the wife to her paternal place, and thereafter, started to 2025:JHHC:23881-DB living at his Village Bhandra. The wife always discharged her marital obligations and domestic work but she always was subjected to cruelty by the husband due to his relation with the wife of his brother. He and his family member never concealed with regard to divorce of his sister from the first husband.

39. During cross-examination, R.W.-3 has deposed that the husband deliberately caused an accident on 11.07.2011 in which the wife sustained severe injury. In the month of October,2012 the husband tried to commit murder of the wife which was reported to the State Women's Commission in the year 2017. He has denied the fact that character of the husband is good.

40. RW-4, the wife herself, namely, Sabita Kumari, has admitted her marriage with the petitioner on 17.06.2010 at Ranchi. At the time of negotiation of marriage, it was disclosed to the husband by her brother Luxman Prasad that she was a divorcee, then only marriage was settled by giving her photographs, Bio-Data and Divorce related paper to the father of the husband from whom the

husband took away her photo and Court papers related to divorce, but the Bio-Data remained with the father of the husband who filed it in the Court. At the time of marriage, a sum of Rs. 5.51-Lacs was transferred by her brother in the account of the husband and some gifts worth Rs.7-Lac was also given to the husband and then she came to her in-laws' place. After marriage of brother of the respondent-husband, his behaviour changed towards the appellant-wife she thereafter used to go to his 2025:JHHC:23881-DB native place leaving her at Ranchi and on being asked she was subjected to torture and abuse. She met with an accident which was done deliberately by the husband on 11.07.2011. Further, she was subjected to murderous attempt by the husband and others and thus there was an apprehension of her life at his Village Kumarhia. The husband had illicit relation with the wife of his brother who was living in the village which was protested by her thus she was subjected to cruelty by him. She has further stated that she never visited her parental place frequently rather it was the husband, who dropped her, when he had to go to his field work. The husband tried to oust her from his Govt. Quarter but she sent letter to the State Women's Commission and Department where the husband was working, so he could not succeed to oust her. This witness has also deposed that she always did the domestic work and took all efforts for happiness of the husband but he was having intention of his second marriage which was recorded in Phone by her. She has further stated that her behaviour was always good with the husband which is evident by the SMS Chat between the parties. This witness has proved various documents sent to State Women's Commission, D.C., Sr. S.P. Ranchi, Department where the husband was working with regard to litigation between the parties. R.W.-4 has denied that she never allowed the respondent-husband for physical contact rather her marriage was consummated the very next day of the marriage.

41. During cross-examination, this witness has deposed that nothing like her divorce from her earlier husband was concealed at the time of 2025:JHHC:23881-DB negotiation of marriage. There are two houses of the husband at the native place and in one of the houses, the respondent-husband lives with wife of his brother. Thereafter, during entire cross-examination, there is denial of suggestion given by the husband. R.W. 4 admitted that after some time of the marriage, the relation between the parties started deteriorating and in order to murder her, the husband deliberately caused an accident. She has further stated that at the native village of the husband, she stayed in a separate room whereas the husband used to sleep with one Ranimati. Lastly, she has denied that she ever committed cruelty to the husband, rather she cordially behaved with the husband and his family members. This witness has specifically admitted that she alone has been living in the Govt. Accommodation of the husband.

42. The learned Family Judge has appreciated the entire facts and evidence and while negated the claim of the plaintiff/husband (respondent herein) as alleged under Section 12(1) (c) of the Act 1955 has categorically held that no reliable evidence is brought by the petitioner (respondent/husband herein) to prove nullity of his marriage with the respondent (appellant/wife herein) u/s 12(1)(C) of the Hindu Marriage Act.

43. However, the learned Family Court on the availability of the element of cruelty as also has taken into consideration the principle of irretrievable break down of the marriage and has decreed the suit of dissolution of marriage in the favour of the petitioner husband 2025:JHHC:23881-DB

(respondent herein). The learned family Court has observed that the petitioner(respondent herein) is able to prove cruelty against him by the respondent (appellant herein) under Section 13(1) (ia) of the Act 1955 and accordingly the learned Family Court after recording aforesaid finding has decreed the suit in favour of the respondent/husband subject to payment of sum of Rs.15,00,000/- (fifteen lacs) as permanent alimony to the appellant wife by the respondent/husband.

44. This Court in backdrop of the aforesaid factual aspect is now adverting to the contentions as raised by the learned counsel for the parties.

45. This Court while appreciating the argument advanced on behalf of the appellant on the issue of perversity needs to refer herein the interpretation of the word "perverse" as has been interpreted by the Hon'ble Apex Court which means that there is no evidence or erroneous consideration of the evidence.

46. The Hon'ble Apex Court in *Arulvelu and Anr. vs. State* [Represented by the Public Prosecutor] and Anr., (2009) 10 SCC 206 while elaborately discussing the word perverse has held that it is, no doubt, true that if a finding of fact is arrived at by ignoring or excluding relevant material or by taking into consideration irrelevant material or if the finding so outrageously defies logic as to suffer from the vice of irrationality incurring the blame of being perverse, then, the 2025:JHHC:23881-DB finding is rendered infirm in law. Relevant paragraphs, i.e., paras-24, 25, 26 and 27 of the said judgment reads as under:

"24. The expression "perverse" has been dealt with in a number of cases. In *Gaya Din v. Hanuman Prasad* [(2001) 1 SCC 501] this Court observed that the expression "perverse" means that the findings of the subordinate authority are not supported by the evidence brought on record or they are against the law or suffer from the vice of procedural irregularity.

25. In *Parry's (Calcutta) Employees' Union v. Parry & Co. Ltd.* [AIR 1966 Cal 31] the Court observed that "perverse finding" means a finding which is not only against the weight of evidence but is altogether against the evidence itself. In *Triveni Rubber & Plastics v. CCE* [1994 Supp (3) SCC 665 : AIR 1994 SC 1341] the Court observed that this is not a case where it can be said that the findings of the authorities are based on no evidence or that they are so perverse that no reasonable person would have arrived at those findings.

26. In *M.S. Narayanagouda v. Girijamma* [AIR 1977 Kant 58] the Court observed that any order made in conscious violation of pleading and law is a perverse order. In *Moffett v. Gough* [(1878) 1 LR 1r 331] the Court observed that a "perverse verdict" may probably be defined as one that is not only against the weight of evidence but is altogether against the evidence.

In *Godfrey v. Godfrey* [106 NW 814] the Court defined "perverse" as turned the wrong way, not right; distorted from the right; turned away or deviating from what is

right, proper, correct, etc.

27. The expression "perverse" has been defined by various dictionaries in the following manner:

1. Oxford Advanced Learner's Dictionary of Current English, 6th Edn.

"Perverse.--Showing deliberate determination to behave in a way that most people think is wrong, unacceptable or unreasonable."

2. Longman Dictionary of Contemporary English, International Edn.

Perverse.--Deliberately departing from what is normal and reasonable.

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3. The New Oxford Dictionary of English, 1998 Edn. Perverse.--Law (of a verdict) against the weight of evidence or the direction of the judge on a point of law.

4. The New Lexicon Webster's Dictionary of the English Language (Deluxe Encyclopedic Edn.) Perverse.--Purposely deviating from accepted or expected behavior or opinion; wicked or wayward; stubborn; cross or petulant.

5. Stroud's Judicial Dictionary of Words & Phrases, 4th Edn.

"Perverse.--A perverse verdict may probably be defined as one that is not only against the weight of evidence but is altogether against the evidence."

47. In the instant case, since the ground for divorce has been taken on the pretext of cruelty, therefore it would be apt to discuss herein the word "cruelty" under the ambit of the Act 1955.

48. The word "cruelty" has been interpreted by the Hon'ble Apex Court in the case of Dr. N.G. Dastane vs. Mrs. S. Dastana, (1975) 2 SCC 326 wherein it has been laid down that the Court has to enquire, as to whether, the conduct charge as cruelty, is of such a character, as to cause in the mind of the petitioner, a reasonable apprehension that, it will be harmful or injurious for him to live with the respondent.

49. This Court deems it fit and proper to take into consideration the meaning of 'cruelty' as has been held by the Hon'ble Apex Court in Shobha Rani v. Madhukar Reddi, (1988) 1 SCC 105 wherein the wife alleged that the husband and his parents demanded dowry. The Hon'ble Apex Court emphasized that "cruelty" can have no fixed definition.

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50. According to the Hon'ble Apex Court, "cruelty" is the "conduct in relation to or in respect of matrimonial conduct in respect of matrimonial obligations". It is the conduct which adversely affects the spouse. Such cruelty can be either "mental" or "physical", "intentional" or "unintentional". For example, unintentionally waking your spouse up in the middle of the night may be mental cruelty; intention is not an essential element of cruelty but it may be present. Physical cruelty is less ambiguous and more "a question of fact and degree."

51. The Hon'ble Apex Court has further observed therein that while dealing with such complaints of cruelty it is important for the court to not search for a standard in life, since cruelty in one case may not be cruelty in another case. What must be considered include the kind of life the parties are used to, "their economic and social conditions", and the "culture and human values to which they attach importance."

52. The nature of allegations need not only be illegal conduct such as asking for dowry. Making allegations against the spouse in the written statement filed before the court in judicial proceedings may also be held to constitute cruelty.

53. In V. Bhagat vs. D. Bhagat (Mrs.), (1994)1 SCC 337, the wife alleged in her written statement that her husband was suffering from "mental problems and paranoid disorder". The wife's lawyer also levelled allegations of "lunacy" and "insanity" against the husband and his family while he was conducting a cross-examination. The Hon'ble 2025:JHHC:23881-DB Apex Court held these allegations against the husband to constitute "cruelty".

54. In Vijaykumar Ramchandra Bhate v. Neela Vijay Kumar Bhate, (2003)6 SCC 334 the Hon'ble Apex Court has observed by taking into consideration the allegations levelled by the husband in his written statement that his wife was "unchaste" and had indecent familiarity with a person outside wedlock and that his wife was having an extramarital affair. These allegations, given the context of an educated Indian woman, were held to constitute "cruelty" itself.

55. The Hon'ble Apex Court in Joydeep Majumdar v. Bharti Jaiswal Majumdar, (2021) 3 SCC 742, has been pleased to observe that while judging whether the conduct is cruel or not, what has to be seen is whether that conduct, which is sustained over a period of time, renders the life of the spouse so miserable as to make it unreasonable to make one live with the other. The conduct may take the form of abusive or humiliating treatment, causing mental pain and anguish, torturing the spouse, etc. The conduct complained of must be "grave" and "weighty" and trivial irritations and normal wear and tear of marriage would not constitute mental cruelty as a ground for divorce.

56. It needs to refer herein the learned Family Court while allowing the suit for dissolution of marriage has also taken into consideration the principle of "Irretrievable Break Down of the marriage", as such it would be proper to discuss herein the aforesaid principle. It is pertinent to note herein that the learned family Court while allowing 2025:JHHC:23881-DB the suit has taken into consideration principle of "Irretrievable Break Down of the marriage" but the aforesaid principle has not been framed as an issue by the learned Family Court.

57. Concept of the "irretrievable breakdown of marriage" requires its emphasis from its meaning and the place and time wherefrom it has emerged. The word 'irretrievable' is antonym to the word 'retrievable' means can get better or make better.

58. It has not been recognized as a ground for divorce in the statute Book. The Law Commission of India after experiencing the pendency of matrimonial cases, complicity, non-adjustment, vulgarity in relation between the spouse thought it appropriate to recommend the same as a ground for divorce. The Law Commission of India in Chapter III of its 71st Report made such recommendation first time. The Law Commission said that once the parties have been separated, which continued for a sufficient length of time and one of them presented the petition for divorce, it can very well be presumed that the marriage has broken down. The Court, no doubt, should endeavour to reconcile, the parties; yet if it is found that the breakdown is irretrievable then divorce should not be withheld. Meaning thereby the consequences of preservation in law of the unworkable marriage which has long ceased to be effective are bound to be a source of greater misery for the parties.

59. The Hon'ble Apex Court in the case of K. Srinivas Rao v. D.A. Deepa, reported in (2013) 5 SCC 226 : (AIR 2013 SC 2176) has observed 2025:JHHC:23881-DB that irretrievable breakdown of marriage is not a ground for divorce under Hindu Marriage Act, 1955. However, where marriage is beyond repair on account of bitterness created by acts of either of the husband or the wife or of both, courts have always taken irretrievable breakdown of marriage as a very weighty circumstance amongst others necessitating severance of marital tie.

60. It may be understood from the word 'retrieve', which means find and bring back; put right or improve, find or extract. As per verbal meaning it denotes the thing which was not in order or lost, has come back in its revival would retrieve. The word irretrievable is an adjective and indicative to the fact 'not able to be retrieved, means the things were lost in past, now cannot be revived, a couple separated on the ground of irretrievable breakdown (of their marriage). However, the phrase 'irretrievable breakdown' has been used on cessation of marriage and when its revival is not possible. Thus, it can safely be clarified that a marriage resumes religious character but under a legal perspective a contract giving special status to spread in society establishing family virtues. Once its continuation is not possible, it would fall within irretrievable breakdown.

61. The irretrievable breakdown of marriage means the couple can no longer live together as husband and wife. Both partner and one partner must prove to the Court that there is no reasonable chance of getting back together.

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62. This Court, on the premise of the interpretation of the word "cruelty" and settled position of law as referred hereinabove has considered the evidences of the witnesses as has been incorporated by the learned Court in the impugned judgment.

63. Herein since appellate jurisdiction has been invoked therefore, before entering into merit of the case, at this juncture it would be purposeful to discuss the appellate jurisdiction of the High Court.

64. It needs to refer herein that under section 7 of the Family Courts Act, the Family Court shall have and exercise all the jurisdiction exercisable by any District Court or any Sub-ordinate Civil Court under any law for the time being in force in respect of suits and proceedings of the nature which are described in the explanation to section 7(1).

65. Sub-section (1) to section 19 of the Family Courts Act provides that an appeal shall lie from every judgment or order not being an interlocutory order of a Family Court to the High Court "both on facts and on law". Therefore, section 19 of the Family Courts Act is parallel to section 96 of the Code of Civil Procedure, the scope of which has been dealt with by the Hon'ble Apex Court in series of judgments.

66. The law is well settled that the High Court in a First Appeal can examine every question of law and fact which arises in the facts of the case and has powers to affirm, reverse or modify the judgment under question. In "Jagdish Singh v. Madhuri Devi" (2008) 10 SCC 497 the Hon'ble Supreme Court observed that it is lawful for the High Court 2025:JHHC:23881-DB acting as the First Appellate Court to enter into not only questions of law but questions of fact as well and the appellate Court therefore can reappraise, reappraise and review the entire evidence and can come to its own conclusion. For ready reference the relevant paragraph of the said judgment is being quoted as under:

It is no doubt true that the High Court was exercising power as the first appellate court and hence it was open to the Court to enter into not only questions of law but questions of fact as well. It is settled law that an appeal is a continuation of suit. An appeal thus is a rehearing of the main matter and the appellate court can reappraise, reappraise and review the entire evidence--oral as well as documentary--and can come to its own conclusion.

67. Further, it requires to refer herein that under section 3 of the Indian Evidence Act a fact is said to be proved when the Court either believes it to exist or considers its existence so probable that a prudent man under the circumstances would proceed on the supposition that such fact really exists. Therefore, the normal rule of preponderance of probability is the rule which governs the civil proceedings like this.

68. The expression "preponderance of probability" is not capable of exact definition nor can there be any strait-jacket formula or a weighing machine to find out which side the balance is tilted. The preponderance of probability would imply a positive element about possibility of existence of a fact. This means a higher degree of probability of happening of something and existence of a fact.

69. In "A. Jayachandra v. Aneel Kaur" (2005) 2 SCC 22 the Hon'ble Apex Court has observed that the concept, a proof beyond the shadow of 2025:JHHC:23881-DB doubt, is to be applied to criminal trials and not to civil matters and certainly not to matters of such delicate personal relationship as those of husband and wife. Therefore, the Court has to see what are the probabilities in the case and legal cruelty has to be found out, not merely as a matter of fact, but as the effect on the mind of the complainant spouse caused by the acts or omissions of the other.

70. Since this Court is exercising the power of appeal as referred hereinabove and as per the settled position of law which require the consideration of the appellate Court is that the order/judgment passed by the appropriate Forum, if suffers from perversity, the same is to be taken as a ground for its reversal.

71. This Court has considered the judgment passed by the learned Family Judge on the issue of perversity, since, perversity has been interpreted by the Hon'ble Apex Court as discussed in the preceding paragraph that if any material fact even though produced before the concerned adjudicator if not being considered or erroneously been considered then the same will come under the fold of perversity.

72. Herein, as per the pleadings, the ground of cruelty has been taken for dissolution of the marriage. The respondent/husband who had been examined as P.W.1 had stated that appellant/wife has treated him with cruelty. He had further stated that after marriage, his wife (appellant herein) never allowed the husband for physical relation with her on the pretext that she has some physical infirmity. He has also deposed that he himself cooked food and did domestic works of 2025:JHHC:23881-DB the house which caused a pathetic life to him. She also used to run away from the house without informing him. It has been also deposed by him that when he became fed up by abusive language and threatening of implicating him in dowry cases and that the wife used to conceal his bike keys, ATM Card and medicines deliberately, he informed the matter to the State Mahila Ayog on 16.08.2016 and 03.10.2016 for cruel behaviour of the wife.

73. He had further deposed that the matter was pacified by intervention of the State Mahila Ayog then he opened an Account in the name of the wife in Union Bank of India, Doranda, Ranchi and deposited a sum of Rs.31,000/- even then, the matter was not settled. The wife never discharged her obligation as wife so he filed a case of restitution of conjugal right in the Family Court, Ranchi bearing MTS Case No. 222/2017 on 12.04.2017.

74. It has further been stated that the wife admitted before the State Mahila Commission that she is a divorcee and vide MTS Case No.304/2003 at Patna, her marriage was dissolved and after knowing this respondent became shocked and because the appellant-wife and her family members concealed the facts and fraudulently got her married with him, he has preferred the application for dissolution of marriage on the ground of concealment of aforesaid fact as well as on the ground of cruelty.

75. However the learned Family Court in the absence of any cogent evidence led by the respondent husband has negated the ground of 2025:JHHC:23881-DB 12(1) (C) of the Act 1955 on the basis of testimony of the witnesses produced on behalf of the appellant/wife particularly the father of respondent husband who had stated in his testimony that Biodata has been given by the Family Member of the Appellant/wife wherein it has been mentioned about the earlier marriage of the appellant/wife.

76. Further it is evident from the testimony of the respondent/husband that the appellant and respondent had lived together for six years since 2010 to 2016 without any friction and first time in 2017 appellant had lodged complaint before women commission. It is further evident from the

testimony of the respondent that appellant/wife has been living in the quarter allotted in the name of respondent/husband, thus from the aforesaid fact it is evident that the appellant has no desire to desert the respondent/husband rather she has tried to save her matrimonial life.

77. Further the respondent in his testimony has alleged the instances of cruelty and had stated that appellant was never interested in doing domestic work and even she never prepare food for him but the alleged instances amount to normal wear and tear of the married life. From the testimony it further appears that respondent had alleged about the physical infirmity of the appellant wife but any concrete and cogent evidence has not been brought on record by the respondent/husband.

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78. Thus, it is evident from the aforesaid that the respondent/husband has not filed any cogent evidence rather it appears that the same has been alleged without any basis only because the Respondent/Husband wants divorce from the appellant/wife.

79. Further from impugned order it is evident that the learned Family Court has also come to the conclusion that marriage between the parties has irretrievably been broken down but on what basis the learned Family Court has reached the aforesaid conclusion has not been discussed elaborately in the impugned order. As discussed in the preceding paragraph that the irretrievable breakdown of marriage means the couple can no longer live together as husband and wife. Both partner or any one partner must prove to the Court that there is no reasonable chance of getting back together, but herein as per the testimony of the husband, the appellant wife is living in the quarter which has been allotted on the name of the respondent husband, this fact itself indicates that appellant/wife does not want to sever the matrimonial ties with the respondent.

80. Now coming to the testimony of the appellant wife who had been examined as R.W.4 wherein she had deposed that she met with an accident which was deliberately caused by the respondent/husband on 11.07.2011. Further, she was subjected to murderous attempt by the husband and others. In the testimony it has been stated that the husband had illicit relation with wife of his brother who was living in 2025:JHHC:23881-DB the village which was protested by her thus she was subjected to cruelty by him. She has further stated that she never visited her parental place frequently rather it was the husband, who dropped her, when he had to go to his field work. This witness has also deposed that she always did the domestic work and took all efforts for happiness of the husband but he was having intention of his second marriage which was recorded in Phone by her. R.W.-4 has denied that she never allowed the respondent-husband for physical contact rather her marriage was consummated the very next day of the marriage.

81. The aforesaid testimony of the appellant/wife has fully been substantiated by the R.W. 2 Bharat Sahu who is father of the respondent/husband. He has deposed that his daughter-in-law wanted to lead a happy conjugal life with plaintiff but plaintiff has always been suspicious to the character of defendant.

82. Thus, from the aforesaid testimony of the RW.2 who is father of the respondent/petitioner and even though he had supported the testimony of his daughter-in-law (appellant) but from impugned order it appears that the learned family judge has not taken note of the aforesaid evidence in proper manner.

83. It further appears from the order impugned that the learned family Judge has not appreciated the aforesaid evidences particularly the fact that except the petitioner-respondent, no other witness has supported the narration of the respondent/husband and as such, the 2025:JHHC:23881-DB judgment has been passed only taking into consideration the testimony of the respondent/husband.

84. Hence, this Court is of the view that the aforesaid consideration as has been given by the learned Family Judge cannot be said to be proper.

85. This Court, after going through the judgment in entirety, has found that consideration has been given in order to come to the conclusion of the ground of cruelty is not available to respondent/husband.

86. This Court, therefore, is of the view that it is a case where consideration is to be required to be there on the ground of perversity and, according to our considered view, the judgment impugned cannot be said to be well based upon the consideration of the element of cruelty as per the interpretation made by the Hon'ble Apex Court with respect to the element of cruelty in the judgment referred hereinabove.

87. This Court, therefore, is of the view that the impugned judgment cannot be said to be passed on proper consideration of the ground of divorce, i.e., the element of cruelty. As such, the impugned judgment needs interference and, accordingly, the judgment dated 04.07.2023 and passed by the learned Additional Principal Judge, Family Court, Jamshedpur in Original (Matrimonial) Suit No.648 of 2017 is hereby quashed and set aside.

88. In the result, the instant appeal stands allowed. Decree accordingly.

89. Pending interlocutory application(s), if any, also stands disposed of.

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90. As referred hereinabove, the instant First Appeal being F.A.240 of 2023 has been preferred by the appellant-husband challenging the part of the impugned judgment dated 04.07.2023 passed in Original Suit No. 648 of 2017, whereby and whereunder, the husband has been directed to pay permanent alimony of Rs. 15,00,000/- to the wife.

91. Since this Court has already quashed the order dated 04.07.2023 passed by the learned Principal Judge, Family Court, Ranchi in Original Suit No. 648 of 2017, whereby and whereunder, the learned court has allowed the suit in the light of Section 13(1)(i)(i-a) of the Hindu Marriage Act, 1955, therefore in consequence of that the present appeal has no leg to stand his own.

92. Accordingly, the appeal being First Appeal No. 240 of 2023 also stands dismissed.

93. Pending interlocutory application(s), if any, also stands disposed of.

I agree

(Sujit Narayan Prasad, J.)

(Rajesh Kumar, J.)

(Rajesh Kumar, J.)

/A.F.R.

Samarth